

matter; and as I think that the reversal of his decree cannot affect that of the Vice-Chancellor, which may stand alone, I propose that, without at this moment affirming or disaffirming any part of the proceedings of the Court below, on the ground stated in the valuable opinion we have just received, your Lordships should proceed to hear the decree of the Vice-Chancellor discussed upon the merits on Monday next (see *post*, p. 801).

Lord Brougham.—I quite agree with my noble and learned friend, that it is unnecessary for us now to give an opinion on the matter of the Lord Chancellor's disqualification to hear this case. I have no hesitation in saying that my opinion is, upon the second point, very clear indeed, and it agrees with the opinion of the learned Judges. There is quite enough [790] before the House, not only to authorize us, but to call upon us to go on with the case, and to hear it on the question of equity raised in it.

Adjourned.

(June 29) The argument on the Vice-Chancellor's decree was accordingly heard, and at its conclusion,—

The Lord Chancellor said:—In reference to the question upon which her Majesty's Judges, a few days since, gave their opinion, at the desire of this House, the effect of that opinion, in which I for one entirely concur, is, that having regard to the interest which the late Lord Chancellor had in the Grand Junction Canal Company, his decision must be deemed to be voidable, and that an appeal to this House must be considered, as a proceeding in a court of equity, the proper step to be taken to avoid such a decree. Adopting the opinion of the learned Judges in that respect, it will be proper to declare that the orders and decrees appealed against, so far as they were made by the late Lord Chancellor, shall be reversed. Upon that, my noble and learned friends and myself entirely agree.

Upon the other question, upon which I never entertained any doubt, namely, whether the decrees and orders of the Vice-Chancellor could be affected by the circumstance that the Lord Chancellor who affirmed them had an interest in the subject-matter of the suit, the learned Judges have given the House a very clear opinion, and in that opinion I entirely concur; it is that which I always entertained. It is impossible to represent, upon the statutable authority given to the Vice-Chancellor, that he is in the situation of a mere deputy, so as to fall within the cases referred to, or to say that therefore any order or decree made by him [791] would be void or voidable, in case the Lord Chancellor himself had an interest in the matter of the suit. There is no warrant for such an opinion in the words of the statute, and I cannot conceive anything more mischievous or absurd than to suppose that an order or decree made by one of the Vice-Chancellors should be void in a case where the Lord Chancellor did not interfere judicially, merely because the Lord Chancellor himself had an interest in the subject of the suit. Lord Cottenham thought so differently upon that point, that he called in one of the Judges of the court; that Judge, no doubt, possessing in some measure an original jurisdiction, but still an inferior Judge—he called that Judge in to his assistance, to advise him upon the very point now being decided by your Lordships. I apprehend that these decrees of the Vice-Chancellor are good as far as they can be maintained consistently with the rules of equity; and if your Lordships should be of opinion that the case is not made out on the part of the appellant as to the equity he asserts,—that is to say, that no relief ought to have been granted to the company as against him,—I apprehend you will feel no difficulty in affirming the orders and decrees of the Vice-Chancellor, and of declaring that they shall be held to be good, and unaffected by anything which took place as to the affirmance of them or the dealing with them by the Lord Chancellor. (His Lordship then proceeded to give his judgment on the case itself, see *post*, p. 801.)

Lord Brougham.—There are two branches of this case to which my noble and learned friend has referred. One of them is that which arises upon the first argument of the appellant, upon which your Lordships have taken the opinion of the learned Judges; and it is immaterial, as to the result of this case, [792] in which way we dispose of the first question put to the learned Judges, namely, whether or not the Lord Chancellor, in respect of his interest, was disqualified from acting as a Judge in the cause, and therefore whether his decree was voidable or void. That it was not void, my noble and learned friend on the woolsack, and my noble and

learned friend Lord Cranworth, who is not now here, entertained, during the argument, a very strong opinion. The learned Judges consulted, have come to a clear opinion upon that subject, that the decree is not void, but only voidable; nevertheless, that it is to be avoided when brought under review, and upon objection taken. But with respect to the second point submitted to them, whether or not the Vice-Chancellor's judgment is void, in respect of the Lord Chancellor's authority being null from the beginning of the whole proceedings in the Court of Chancery, I must say that I never from the beginning had the least doubt, and was therefore very little surprised to find the learned Judges declare that the Vice-Chancellor has an entirely independent jurisdiction, and is not in any respect dependent upon the Lord Chancellor, from whom he only receives directions as to what cases he shall entertain and dispose of. That by the Act is the only connection which subsists between the two branches of the Court of Chancery, with the exception of the final enrolment, which requires the previous signature of the Lord Chancellor; but, as plainly as an enactment can speak, the Vice-Chancellor has a substantive and an independent jurisdiction conferred upon him by the very words of the statute; and it is expressly stated in that statute that his decrees shall be decrees of the Court of Chancery, and shall have execution as such. And then follows the only connection established between his proceedings and those of the Lord Chancellor, that there shall be no enrolment of a decree, with the view [793] to further proceedings, without the previous signature of the Lord Chancellor; but the giving of that signature cannot affect the validity of the Vice-Chancellor's decree. Therefore, my Lords, we have now in the first place to declare, agreeing in opinion with the learned Judges, that the interest of the Lord Chancellor rendered his decree voidable, and to declare that that decree is reversed, and we have then to deal with the decree of the Vice-Chancellor (see *post*, p. 808).

Lord Campbell.—I take exactly the same view of this case as do my noble and learned friends, and I have very little to add to their observations. With respect to the point upon which the learned Judges were consulted, I must say that I entirely concur in the advice which they have given to your Lordships. No one can suppose that Lord Cottenham could be, in the remotest degree, influenced by the interest that he had in this concern; but, my Lords, it is of the last importance that the maxim that no man is to be a judge in his own cause should be held sacred. And that is not to be confined to a cause in which he is a party, but applies to a cause in which he has an interest. Since I have had the honour to be Chief Justice of the Court of Queen's Bench, we have again and again set aside proceedings in inferior tribunals because an individual, who had an interest in a cause, took a part in the decision. And it will have a most salutary influence on these tribunals when it is known that this high Court of last resort, in a case in which the Lord Chancellor of England had an interest, considered that his decree was on that account a decree not according to law, and was set aside. This will be a lesson to all inferior tribunals to take care not only that in their decrees they are not influenced by their personal interest, but to [794] avoid the appearance of labouring under such an influence. It is quite clear, likewise, I believe, that the orders of the Vice-Chancellor cannot be in the slightest degree affected by what the Lord Chancellor has done, nor can it be maintained that the Vice-Chancellor was acting merely as the Lord Chancellor's deputy when these orders and decrees were pronounced (*post*, p. 809, and see the next case).

WILLIAM DIMES,—*Appellant*; the PROPRIETORS of the GRAND JUNCTION CANAL, T. E. SKIDMORE, and Others,—*Respondents* [June 29, 1852].

Canal Act—Copyhold—Statutory Conveyance—Trustee.

An Act of Parliament incorporated certain persons as a company for the purpose of making a canal, and gave them powers to purchase and hold lands for the purposes of the Act; it authorized persons to "contract for, sell, and convey their lands," gave a form of conveyance "of all the estate, right, title, and interest" of the person conveying, and enacted that all such contracts, agree-

ments, sales, conveyances, and assurances should be valid to all intents, etc. S. was a tenant of copyhold land, a portion of which was wanted for the purposes of the canal; he sold it to the company, and executed a conveyance according to the form given by the Act. The land was then applied to the purposes of the canal. On the death of S. the lord made a proclamation for the heir of S. to come in and be admitted as a tenant on the rolls of the manor. No one appeared to claim admittance, and the lord seized the land *quousque*. He afterwards brought ejectment against the canal proprietors, and obtained judgment against them on the ground that the conveyance under the Canal Act had only vested in them an equitable estate in the copyhold land. He then interfered to stop the course of the navigation. The canal proprietors filed a bill against him, praying that the customary heir of S., or such other person as the plaintiffs might appoint, might be admitted to the copyhold premises, the plaintiffs undertaking to pay the fine and fees upon such admission; and further praying [795] for a perpetual injunction and general relief. The Vice-Chancellor made a decree directing that the customary heir of S. (who had been made a party to the suit) should be admitted tenant to the copyhold premises in question, and when admitted should hold the same as trustee for the plaintiffs in the suit, and the amount of the fine was referred to the Master, and an injunction was granted as prayed:

Held, that the decree of the Vice-Chancellor was right.

The Solicitor-General and Mr. Selwyn (see the statement of facts, *ante*, p. 759).—This is not a question of equitable right, for there is no pretence for a Court of Equity conferring on these respondents the power of doing, without conditions, that which the Legislature has withheld from them, except upon conditions. This case must be considered with reference to the provisions in the Canal Act as to the purchase of land.* [796] Before converting this land to the purposes of a canal, the

* The Act in question was the 33 Geo. 3, c. lxxx., which incorporated “the Company of Proprietors of the Grand Junction Canal.” The following are all its provisions in any way relating to this case. It directed that “the said company should have power and authority to purchase and hold lands to them, their successors, and assigns, for the use of the said navigation, without incurring the penalties or forfeitures of the Statutes of Mortmain.” And the proprietors were authorized to make a canal, etc. etc., for the purposes aforesaid, to enter upon the lands and grounds of any person, and to set out such parts as were necessary for making the canal, etc., they making satisfaction in the manner therein mentioned to the owners or proprietors of, and all persons interested in, the lands, etc., for all damages sustained in consequence of the execution of the Act. By the 9th clause, all classes of persons were authorized to “contract for, sell, or convey” their lands “unto the said company of proprietors.” The clause went on to declare that “all such contracts, agreements, sales, conveyances, and assurances should be valid and effectual to all intents and purposes whatsoever, any law, statute, usage, or custom to the contrary thereof in anywise notwithstanding.”—Section 30.

Section 30 provided that the commissioners shall and may settle “what shares and proportions of the purchase-money or compensation for damages which shall be so agreed for and determined, and adjusted, or assessed in manner respectively as aforesaid, shall be allowed to any tenant or other person or persons having a particular estate, term, or interest in the premises, for his, her, or their respective interest therein, and with due regard to the rights and interest of the lord or lords, lady or ladies, of any manor or manors whereof the lands or hereditaments to be affected by the said canal are respectively holden.”

Section 101 enacted that nothing in the various Acts “shall prejudice the right of any lord, etc., of any manor, or of any owner, etc., of any land through which the canal, etc., shall pass to the mines and minerals under such lands;” and reserves them to such lord.

Section 103 empowers the company to make any navigable branch from the canal, etc., “through or over any common or waste lands, with the consent, under the hands and seals of the lord or lady of the manor, and also in, over, or through, any other